

Court No. - 2

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Petitioner Counsel :- M.A. Abbasi, Hemant Kumar

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Vineet Saran, J.

Hon'ble Abhinava Upadhyaya, J.

Put up on Tuesday dated 28.9.2010 as a fresh case so as to enable the petitioner to file a supplementary affidavit.

Order Date :- 22.9.2010

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Court No. - 2

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Petitioner Counsel :- M.A. Abbasi,Hemant Kumar

Respondent Counsel :- C.S.C.,Mridul Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Learned Standing Counsel has accepted notice on behalf of respondent no. 1 whereas notice on behalf of respondents no. 2 to 4 has been accepted by Ms. Mridul Tripathi, Advocate. They are granted one month's time to file counter affidavit. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

In the meanwhile, the temporary connection granted to the petitioner shall not be disconnected and the petitioner shall continue to deposit the charges at the same rate he is currently depositing.

Order Date :- 4.10.2010

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Court No. - 21

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Petitioner Counsel :- M.A. Abbasi,Hemant Kumar

Respondent Counsel :- C.S.C.,Mridul Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

As prayed counter affidavit be filed within two weeks and no more. List thereafter.

Order Date :- 3.5.2012

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Court No. - 29

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- M.A. Abbasi,Hemant Kumar

Counsel for Respondent :- C.S.C.,Mridul Tripathi

Hon'ble Tarun Agarwala,J.

Hon'ble Ashok Kumar,J.

List in the next cause list showing the name of Sri Sumit Kumar Yadav, as counsel for the respondents.

Order Date :- 20.7.2017

Israr

(Ashok Kumar, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- M.A. Abbasi, Hemant Kumar

Counsel for Respondent :- C.S.C., Mridul Tripathi, Suman Kumar
Yadav, Sumit Kumar Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Ajay Bhanot, J.

Rejoinder affidavit filed on 07.03.2013 be placed
on record.

List in the next cause list.

Order Date :- 3.10.2017

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(Ajay Bhanot, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- M.A. Abbasi,Hemant Kumar

Counsel for Respondent :- C.S.C.,Mridul Tripathi,Suman Kumar
Yadav,Sumit Kumar Yadav

Hon'ble Tarun Agarwala,J.

Hon'ble Ajay Bhanot,J.

The case is passed over on the illness slip of Sri M.A.Abbasi, the learned counsel for the petitioner.

Order Date :- 10.10.2017

AKJ

(Ajay Bhanot,J.)

(Tarun Agarwala,J.)

Court No. - 4

Case :- WRIT - C No. - 58335 of 2010

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- M.A. Abbasi, Hemant Kumar

Counsel for Respondent :- C.S.C., Mridul Tripathi, Suman Kumar Yadav, Sumit Kumar Yadav

Hon'ble Bala Krishna Narayana, J.

Hon'ble Irshad Ali, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent no. 1 and Sri Sumit Kumar Yadav, learned counsel appearing on behalf of respondent nos. 2, 3 and 4.

Counter and rejoinder affidavits have been exchanged.

With the consent of the learned counsel for the parties, this petition is being disposed of at the admission stage.

This writ petition has been filed by the petitioner with the prayer to issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 16.6.2010 passed by the respondent no. 4 (Annexure-9 to the writ petition) by which the application moved by him before the respondent no. 4 for obtaining new connection for premise no. 117/M/290, has been rejected on the ground that payment of two bills of Rs. 84,000/- and Rs. 1,08,000/- pertaining to two power connections namely 25N4/010145 and 7177/010145 which were obtained by Ramdash son of Kallu and Ramdas son of Gokaran in respect of the same premises was outstanding.

Learned counsel for the petitioner has submitted that the petitioner had purchased the premises in question from the Kanpur Development Authority in an auction conducted by the Kanpur Development Authority and he had no knowledge that any electricity dues were pending on the premises and hence the respondent no. 4 was not justified in refusing to grant power connection to the petitioner's premises.

Per contra Sri Sumit Kumar Yadav, learned counsel appearing on behalf of respondent nos. 2, 3 and 4 has submitted that impugned order is in consonance with clause 4.3(f) of The U.P. Electricity Supply Code, 2005 which lays down the manner in which a new connection shall be granted and since clause 4.3(f) of The U.P. Electricity Supply Code, 2005 clearly

stipulates that it will be the duty of the seller and the purchaser to find out the outstanding electricity dues up to the date of sale, and further that both seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues/ obtain no dues certificate and before sale of a premise is made, the outstanding dues will be cleared and, in the alternative the deed to agreement / sale will specifically mention the outstanding dues and the method of its payment and since in this case neither the outstanding dues were cleared before selling the premises nor the deed of agreement between the petitioner and the Kanpur Development Authority stipulates the manner in which the outstanding dues shall be cleared and no dues certificate has not been obtained by the old owner, no fault can be found with the impugned order in refusing to grant power connection to the petitioner's premises.

After having heard the learned counsel for the parties and perused the other material brought on record as well as the relevant provisions of the code, we find that there is no force in the submissions of the learned counsel for the petitioner whereas the arguments advanced by the learned counsel for the respondent have substance. In order to appreciate the submissions made by the learned counsel for the parties, it would be useful to reproduce clause 4.3(f) of The U.P. Electricity Supply Code, 2005 herein below :

"(i) It will be the duty of the seller and of the purchaser to find out the outstanding electricity dues up to the date of sale, and further that both seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues/obtain No dues certificate.

(ii) Before sale of a premise is made, the outstanding dues will be cleared and, in the alternative the deed to agreement/sale will specifically mention the outstanding dues and the method of its payment "Outstanding dues" means all dues pending on a premises including late payment surcharge.

(iii) In case the no-dues certificate is not obtained by the old owner, new owner before purchase of property may approach the licensee for no-dues certificate, by giving the reference of the connection in said premises. The licensee shall either intimate the pending dues, if any, on the premises or issue no dues certificate within 30 working days from the date of application.

(iv) The outstanding dues will be first charge on the assets of the company, and the licensee shall ensure that this is entered in an agreement with new applicant.

(v) The recovery proceedings against the defaulting consumer, and where the defaulting consumer is a company, from the Directors of the company, shall be ensured. Where a financial institution has auctioned the property without consideration to licensees charge on assets, claims may be lodged with the concerned financial institution with diligent pursuance.

(vi) In case the electricity connection to the said premises was given with the consent of house owner, such person shall ensure the payment of all arrears/dues of electricity by the tenant before the tenant vacates the premises.

(vii) However the above conditions shall not apply if inconsistent with the provision of any higher Court order or an order as a consequence to it.

(viii) The application shall be processed by licensee on clearing of dues".

Even the most superficial reading of clause 4.3 and its sub clauses of U.P. Electricity Supply Code, 2005 reveals that in case there are any outstanding dues on a premise, no new power connection can be granted to the purchasers unless the outstanding dues are cleared or a no dues certificate is obtained by the purchasers from the old owner or there is any clause in the deed of agreement or a instrument under which the concerned premises was transferred stipulating the manner for clearing the outstanding dues. In the instant case, there is no doubt about the fact that two amounts of Rs. 84,000/- and 1,08,000/- were outstanding on the premise in question as electricity dues on the date of its purchase by the petitioner. There is no material on record indicating that either the outstanding dues have been cleared or the petitioner has obtained no dues certificate from the old owner or the instrument under which the premise in question was transferred by the Kanpur Development Authority to the petitioner contains any clause providing the manner for clearance of the outstanding dues.

In view of the above, we do not find any reason to interfere with the impugned order.

Petition lacks merit and is accordingly dismissed.

Order Date :- 21.3.2018/SA